

**MEMORANDUM OF UNDERSTANDING
FUNDING DISTRIBUTION
FOR
METROPOLITAN TRANSPORTATION PLANNING
BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CASPER AND CHEYENNE METROPOLITAN PLANNING ORGANIZATIONS**

Consolidated Planning Grant
FHWA PL and FTA Urban Transit Funds
Natrona and Laramie Counties, Wyoming

- 1. Parties.** This Memorandum of Understanding (hereinafter referred to as "MOU") by and between the Wyoming Department of Transportation (WYDOT), whose address is 5300 Bishop Boulevard, Cheyenne, Wyoming 82009, the Casper Metropolitan Planning Organization known as the Casper Area Transportation Planning Process (CATPP) whose address is 200 North David Street, Casper, Wyoming 82601, and the Cheyenne Metropolitan Planning Organization (Cheyenne MPO) whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
- 2. Purpose.** This MOU is established for the purpose of providing an administrative means of distributing FHWA planning funds (PL funds) and FTA Section 5303 transit planning funds, via a Consolidated Planning Grant (CPG), for Metropolitan Transportation Planning within the State of Wyoming. The funding formula in this MOU shall be applicable from the date of execution to each fiscal year throughout the duration of MAP-21 (Moving Ahead for Progress in the 21st Century) and continuing resolutions thereafter.
- 3. Terms of MOU.** This MOU shall commence upon the day and date last signed and executed by the duly authorized representatives of the parties to this MOU, and shall remain in full force and effect until terminated. This MOU may be terminated, without cause, by either party upon thirty (30) days written notice, which notice shall be delivered by hand or by certified mail.
- 4. Payment.** No payment shall be made to either the CATPP or Cheyenne MPO by WYDOT as a result of this MOU.
- 5. Responsibilities of WYDOT.**
 - a. WYDOT will pay all CATPP and the Cheyenne MPO monthly CPG requests for reimbursement within thirty (30) days of receipt to WYDOT Planning.
 - b. In accordance with 23 CFR Ch 1. §420.109, WYDOT will distribute FHWA planning funds (PL funds) via the Consolidated Planning Grant (CPG) for Metropolitan Transportation Planning within the State of Wyoming as follows:

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CATPP & Cheyenne MPO	66.67%
WYDOT	33.33%

WYDOT will distribute FHWA-PL funds through the Consolidated Planning Grant (CPG) based on decennial Census data. Table 1 provides the percent split of the respective authorization.

Table 1

Metropolitan Planning Organization	Urbanized Population Source: US Census Bureau, 2010	FHWA-PL & 5303 (Percent)
CATPP	64,548 Casper Urbanized Area	47
Cheyenne MPO	73,588 Cheyenne Urbanized Area	53

Based on Table 1, Cheyenne will receive 53 percent (53%) of the 66.67 percent (66.67%) PL funds allocation and Casper will receive 47 percent (47%) of the 66.67 percent (66.67%) PL funds allocation.

PL funding as part of the CPG shall carry a 9.51 percent (9.51%) local match requirement or a local match determined by current legislation. The percent split shall be subject to annual approval by WYDOT Executive Staff. The PL funding amount will be adjusted annually based on the federal funds obligation limitation.

Should the full allocation of PL funds not be needed by the MPO, or if the MPO is unable to match the total PL funding at the beginning of the fiscal year, WYDOT, after consultation with the affected MPO, will redistribute those funds to other statewide planning activities per 23 CFR Ch 1. §420.109.

- c. Per U.S. Code Title 49, III, Ch. 53, Sec. 5303 which states that FTA 5303 funds shall be allocated with a formula that provides an appropriate distribution by means of population of urbanized areas, WYDOT will distribute 5303 transit planning funds through the Consolidated Planning Grant (CPG) based on decennial Census data (Table 1).

The FTA 5303 funding as part of the CPG shall carry a 9.51 percent (9.51%) match requirement. The FTA 5303 funding amount will be adjusted annually based on the federal funds obligation limitation.

Funds are programmed to the cooperating program members during the fiscal year (October 1 - September 30). After consultation with the affected MPO, excessive amounts of funds unexpended, unencumbered, or unobligated at the end of the fiscal year may be reprogrammed for WYDOT's use in the next fiscal year. Unexpended funds are defined as those funds which have not been spent at the end of the fiscal year. Unencumbered or unobligated funds are defined as those funds which have not been

obligated by contract by the end of the fiscal year to complete all or part of a work activity or project listed in the MPO's Unified Planning Work Program.

6. Responsibilities of the CATPP and Cheyenne MPO

- a. The CATPP and Cheyenne MPO's Unified Planning Work Programs (UPWPs) shall be based on this funding allocation. Draft UPWPs will be submitted no later than fifteen (15) days before the end of the fiscal year.
- b. One (1) copy of all draft products and two (2) copies of all final products and documents generated from planning studies accomplished utilizing these funds shall be forwarded to WYDOT for their review and files; and one (1) copy of all draft and one (1) copy of all final products and documents generated from planning studies accomplished utilizing these funds shall be forwarded to FHWA for their review and files.
- c. CATPP and the Cheyenne MPO will provide both annual and quarterly reports of metropolitan planning activities to WYDOT. WYDOT shall make available similar reporting to the MPOs of statewide planning activities utilizing PL funds.
- d. CATPP and the Cheyenne MPO shall adhere to all applicable Code of Federal Regulation requirements involving metropolitan planning.
- e. CATPP and the Cheyenne MPO shall charge separately and keep separate accounting for all city and county business activities not directly related to the function of the MPO. Such activities shall be considered non-reimbursable.
- f. In the event that CATPP or Cheyenne MPO has a justifiable need for additional funds, a written request shall be made to WYDOT specifying the work item(s) proposed for use of the additional funds.
- g. CATPP and the Cheyenne MPO shall adhere to all applicable provisions of their current Master Agreement with WYDOT.

7. General Provisions.

- a. **Amendments.** Either party may request changes to this MOU. Any changes, modifications, revisions or amendments to this MOU which are mutually agreed upon by and between the parties to this MOU shall be incorporated by written instrument, executed and signed by all parties to this MOU.
- b. **Applicable Law and Venue.** The construction, interpretation and enforcement of this MOU shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this MOU and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

- c. **Entirety of this Agreement.** This MOU, consisting of five (5) pages, represents the entire and integrated MOU between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.
- d. **Indemnification.** Each party to this MOU shall be responsible for any liability arising from its own conduct. Neither party agrees to insure, defend or indemnify the other.
- e. **Prior Approval.** This MOU shall not be binding upon either party unless this MOU has been reduced to writing before performance begins as described under the terms of this MOU, and unless this MOU is approved as to form by the Attorney General or his representative.
- f. **Severability.** Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- g. **Governmental and Sovereign Immunity.** The State of Wyoming, WYDOT, the Cities of Casper and Cheyenne and their officers and employees and the MPOs do not waive their sovereign or governmental immunity by entering into this MOU, and each fully retains all immunities and all defenses provided by law, including all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, *et. seq.*, and all other applicable laws, with respect to any action based on or occurring as a result of this MOU.
- h. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this MOU shall not be construed so as to create such status. The rights, duties and obligations contained in this MOU shall operate only between the parties to this MOU, and shall inure solely to the benefit of the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU.

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- 8. Signatures.** In witness whereof, the parties to this MOU, through their duly authorized representatives, have executed this MOU on the days and dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein. This MOU may be executed in more than one (1) copy, however, each copy shall constitute but one (1) and the same MOU.

The effective date of this MOU is the day and date last signed and executed by the duly authorized representatives of the parties to this MOU, below.

CITY OF CASPER (Serving as contract authority for CATPP)

ATTEST: CITY OF CASPER, WYOMING

V.H. McDonald, City Clerk

Kenyne Schlager, Mayor

Approved as to form:

City Attorney

Date

CITY OF CHEYENNE (Serving as contract authority for Cheyenne MPO)

ATTEST: CITY OF CHEYENNE, WYOMING

Carol A. Intlekofer, City Clerk

Richard Kaysen, Mayor

Approved as to form:

City Attorney

Date

WYOMING DEPARTMENT OF TRANSPORTATION:

Del McOmie, P.E., Chief Engineer

Date

Approved as to form:

By: _____
Douglas J. Moench
Senior Assistant Attorney General
State of Wyoming

Date prepared: 08/07/13